

From: Dennis Rowles
To: [Secretary](#)
Cc: [EDWARD Greenberg](#); [Jay Rowles](#); [Anthony DAmbrosio](#)
Subject: Docket 17-10
Date: Wednesday, January 3, 2018 2:05:54 PM

Dear Ms. Dickon,

We are writing in support of the notice in the Federal Register Docket 17-10 "Amendments to Regulations Governing NVOCC Negotiated Rate Agreements and NVOCC Service Agreements."

We believe the lifting of the requirement of having our customers formally agree to the NRA and allow for the acceptance of a booking of cargo to confirm their agreement to be in the interest of the shipping public. This change will eliminate additional steps for both the NVOCC and the Shipper. Our customers have told us that if the rate offering is not acceptable they will not book their shipments with us as there is plenty of competition on the market.

We also agree with the request to allow us to amend the NRA as market conditions change. The steamship industry involved in the Far East Trade is, on an almost monthly basis, issuing Notices of General Increase 30 days in advance of the effective date in accordance with the FMC requirement.

We then setup to add the increase into our NRA pricing to our import customers only to find that the GRI is either reduced or completely eliminated because of market conditions. This puts us in a situation where we are either overcharging our customer because we have finalized the NRA or we are scrambling at the last minute to rework all the spreadsheets to reduce the rate offering (NRA) to remain competitive in the market place.

The ability to adjust the NRA as the market conditions change would eliminated hours of work and would benefit the Shipping Public by allowing us to reduce the rate being offered earlier than when the NRA expires under the current system.

Regards

Dennis

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